

Sagufta Ishrar v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 9 April 2025 · 2025:AHC:52030-DB · Writ-C No. 10364 of 2025 · **Writ disposed of; permanent disconnection after inspection and dues.**

HEADNOTE

Mandamus to finalize permanent disconnection under clause 4.38 of the U.P. Electricity Supply Code, 2005 — licensee directed to inspect the meter at the consumer's residence, intimate pending dues, and permanently disconnect the supply on payment within three weeks.

FACTUAL SUMMARY

The petitioner sought a mandamus directing Purvanchal Vidyut Vitran Nigam Ltd. to finalize permanent disconnection of her electricity supply from the date of temporary disconnection, invoking clause 4.38 of the U.P. Electricity Supply Code, 2005. Counsel for the respondents submitted that the consumer had to be present on site for the bill to be finalized, and that none had appeared on her behalf on the previous date fixed for that purpose.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

permanent disconnection

HOLDING

On a consumer's prayer to finalize permanent disconnection under clause 4.38 of the U.P. Electricity Supply Code, 2005, the High Court directed the licensee to inspect the meter at the consumer's residence in her presence, intimate pending dues, and, upon payment within three weeks of knowledge of those dues, permanently disconnect the electricity line. ¶ 4

PRINCIPLE TAGS

clause-4.37-4.38-licensee-empowered-to-permanently-disconnect

The Court gave effect to the consumer's request for permanent disconnection under clause 4.38 by directing the licensee to disconnect the line after on-site meter inspection and payment of pending dues. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.38 ENTITLES THE CONSUMER TO PERMANENT DISCONNECTION WITH EFFECT FROM THE DATE OF TEMPORARY DISCONNECTION

The mandamus prayed for that dating benefit; the Court directed prospective disconnection after inspection and payment without deciding the dating question. ¶ 2,4